

26CHCV00092 26CHCV00092

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Case Number: 26CHCV00092 Hearing Date: June 30, 2026 Dept: F51

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

JUNE 29, 2026

DEMURRER WITH
MOTION TO STRIKE

Los Angeles Superior Court Case
26CHCV00092

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Demurrer with Motion to
Strike Filed: 3/19/26

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MOVING PARTY: Defendant Delia Avila ("Defendant")

RESPONDING PARTY: Plaintiff
Cindy Zamudio ("Plaintiff")

NOTICE: OK

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RELIEF REQUESTED: Defendant

demurs to Plaintiff's entire complaint, and seeks an order striking Plaintiff's prayer for punitive damages, and various allegations, from the complaint.

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TENTATIVE RULING: The unopposed demurrer is

overruled, and the unopposed motion to strike is denied. Defendant to file her answer to Plaintiff's complaint within 20 days.

BACKGROUND¿

This is a landlord-tenant

action in which Plaintiff alleges that on 3/1/24, she took lawful possession of certain residential property located at 13123 Tonopah Street, Arleta, California 91331, pursuant to a written lease agreement entered into with Defendant. (Compl. ¶¶ 1–3.) "This case arises from a sustained campaign of harassment, intimidation, discriminatory treatment, privacy invasion, and retaliatory conduct directed at Plaintiff by her landlord, Delia Avila. Through continuous surveillance, threats, accusations, unwarranted restrictions, hostile confrontations, fabricated allegations, and denials of disability accommodations, Defendant has systematically dismantled Plaintiff's right to secure, stable, and peaceful housing." (Id. at ¶ 7.)

On 1/7/26,

Plaintiff filed her complaint, alleging against Defendant the following causes of action: (1) Violation of Los Angeles Tenant Anti Harassment Ordinance; (2) Breach of the Covenant of Quiet Enjoyment; (3) Nuisance; (4) Negligent Infliction of Emotional Distress; (5) Negligence; (6) Breach of Contract; and (7) Intentional Infliction of Emotional Distress.

On 3/19/26, Defendant filed the

instant demurrer and motion to strike. No opposition has been filed to date.

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DEMURRER

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e) and (f).) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Here, Defendant demurs to Plaintiff’s entire complaint on the basis that she fails to allege facts sufficient to state any of the causes of action therein, rendering the complaint fatally uncertain.

A.

Meet-and-Confer

Before filing its demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) “If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (Id. at subd.

(a)(2).)

Here, Defendant's counsel declares that her "did not have sufficient time and opportunity to meet and confer with Plaintiff's counsel over noted issues in her Complaint, including but not limited to multiple failures to state sufficient facts for multiple causes of action, and uncertain, unclear causes of action which cannot be reasonably responded to via an Answer until the Complaint is either amended or the Demurrer is filed and heard by this Court." (Decl. of Nathan P. Ayala ¶ 5.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements of Code of Civil Procedure section 430.41, subdivision (a).

B.

Uncertainty

Generally speaking, "demurrers for uncertainty are disfavored and thus are strictly construed because ambiguities can reasonably be clarified under modern rules of discovery. Such demurrers are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond." (Cal.Jur.3d § 137.) "Where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (Williams v. Beechnut Nutrition Corp. (2011) 185 Cal.App.3d 135, 139 fn.2.)

Here, Defendant argues that Plaintiff's complaint is uncertain pursuant to Code of Civil Procedure section 430.10, subdivision (f), because "the mismatched causes of action, between the list on page five [paragraph 19], and the subsequent seven causes of action, create uncertainty within the Complaint. It makes it unclear as to which causes of action are being alleged, as the list on page five contains four more causes of action than the seven that follow. Only four of the eleven causes of action on page five are followed by full pleadings." (Dem. 6:3–6.) "Because Defendant cannot determine which causes of action are being alleged, nor which facts support a specific claim, Defendant cannot reasonably respond to the Complaint or prepare a defense." (Id. at 6:10–12.)

The Court disagrees, finding that

Defendant attempts to cast the list of claims contained in paragraph 19 of the complaint as "causes of action." However, accepting as true the allegations of

the complaint, Plaintiff alleges that this is a list of “conditions” that she, and/or third parties, noticed and documented. (Compl. ¶ 19.) The substantive causes of action Plaintiff brings against Defendant, following the allegations in paragraph 19, are clearly enumerated and identified. Therefore, in applying the stringent standard for demurrers filed on this ground, the Court finds that the complaint is not “so incomprehensible” that Defendant cannot respond. Accordingly, the demurrer is overruled on this ground.

C.

Factual Sufficiency

Defendant

further generally argues that Plaintiff has failed to allege facts sufficient to support any of her seven causes of action. “Within the first four pages of the Complaint there are vague references to date ranges, with no specific event or connection between a date and a cause of action that would trigger the liability of Defendant. In the subsequent seven causes of action (including the four overlapping causes of action), no further reference is made to specific acts, dates, or conduct by Defendant to satisfy the elements of those claims. Instead, Plaintiff relies only on vague and conclusory statements which lack ultimate facts.” (Dem. 7:5–10.)

Upon review

of the complaint, the Court notes that Plaintiff has alleged that “beginning in 2024 and escalating into 2025, Defendant initiated a series of hostile communications and intrusive conduct designed to intimidate Plaintiff.” (Compl. ¶ 11.) Defendant’s alleged misconduct includes, inter alia, accusing Plaintiff of trespassing into common areas; forbidding Plaintiff’s emotional support animal from entering the backyard; photographing the interior spaces without Plaintiff’s consent; attempting to enter the subject premises without lawful notice; and withholding funds owed to Plaintiff for a washer and dryer she purchased for the premises. (Id. at ¶¶ 11–17.) “Taken together, Defendant’s actions constitute a continuous campaign of harassment, discrimination, intimidation, and interference with Plaintiff’s lawful right to quiet enjoyment.” (Id. at ¶ 18.)

Based on

the foregoing allegations, the Court rejects Defendant’s argument that Plaintiff has failed to allege facts to support any of her causes of action. The Court notes that Defendant makes no substantive arguments relating to any

defects with the individual causes of action. Accordingly, the demurrer is overruled on this ground.

MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

Here,

Defendant moves to strike Plaintiff's prayer for punitive damages, and various allegations contained in paragraph 19, from the complaint.

A.

Punitive Damages

Punitive

damages may be recovered upon a proper showing of malice, fraud, or oppression by clear and convincing evidence. (Civ. Code § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Id. at subd. (c); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Ibid.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Ibid.)

Here,

Defendant argues that "Plaintiff fails to provide specificity to the causes of action (of uncertain number and type) to make a claim for punitive damages." (MTS 4:10–11.) Defendant therefore asserts that "the insufficient facts fail to constitute a cause of action and certainly do not meet the requirements for punitive damages." (Id. at 4:13–14.) However, as discussed above, the Court finds that Plaintiff has alleged facts sufficient to support each of her causes of action. The Court further finds that Plaintiff has sufficiently

alleged that Defendant acted willfully and in conscious disregard for Plaintiff's rights. (Compl. ¶ 27.)

Accordingly, the Court finds that at this stage, Defendant's alleged conduct as pled may be considered malicious and oppressive as defined by Civil Code section 3294. Further investigation of the merits of Plaintiff's allegations may be resolved through the discovery process. Accordingly, the motion to strike these allegations from the complaint is denied.

B.

Irrelevant and Improper Matter

Defendant further moves to strike items (e) through (k) from paragraph 19 of the complaint, arguing that "of the causes of action listed on page five [paragraph 19], the seven in bold above have no supporting factual allegations and appear to be added either by mistake or part of a boilerplate pleading. In either event, the causes of action being merely listed only create uncertainty as to the actual claims being made in the Complaint." (MTS 5:15–18.)

As discussed above, the Court rejects Defendant's characterization of these allegations as substantive causes of action. Accordingly, the motion to strike these allegations from the complaint is denied.

CONCLUSION

The unopposed demurrer is overruled, and the unopposed motion to strike is denied. Defendant to file her answer to Plaintiff's complaint within 20 days.